Temporary
4150

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of SEVENTY-SEVEN HUNDRED FIFTY ($7,750) DOLLARS, certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of MARY M. BERGENER, residing in Germany, whom, after investigation, he did determine to be an enemy within the purview of said Act as amended, which said real estate is situate in the City, County and State of New York and described as follows:

> ALL that certain lot, piece or parcel of land, with the buildings and improvements thereon erected, situate, lying and being on the southerly side of Houston Street, between Goerck and Mangin Streets, in the Eleventh Ward of the City of New York, bounded and containing as follows: to-wit: BEGINNING at a point on the southerly side of Houston Street aforesaid distant sixty feet westerly from the southwesterly corner of Houston and Mangin Streets; thence running westerly, in front on Houston Street, twenty feet; thence southerly, and parallel with Mangin Street, seventy-five feet; thence easterly and parallel with Houston Street, twenty feet; and thence northerly, and parallel with Mangin Street, seventy-five feet to Houston Street aforesaid, at the point aforesaid, the place of beginning. Containing in width in front and rear twenty feet and in depth on each side seventy-five feet, be the said several distances more or less.

My reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the sale of said real estate has been received by the Alien Property Custodian, as shown by the appraisals of the property sold;

(b) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience, as the sum received by this sale in excess of all appraisals is in excess of the value as indicated by appraisals;

(c) It appears that it is to the interest of the trust held, in that its value will be conserved by this sale by the substitution of the proceeds in lieu of the property sold, because of the difficulty of the administration of such real estate and its consequent deterioration;

(d) The character of this property is such that there are greater possibilities of a decrease in its value than an increase, and that such sale made at this time would, therefore, be to the best advantage of the trust.

CALVIN COOLIDGE

THE WHITE HOUSE,
February 7, 1925.

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GOVERNMENT PRINTING OFFICE